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States target ultraprocessed foods in bipartisan push

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By Claudia Boyd-Barrett, KFF Health News

California Republican James Gallagher, the GOP's former Assembly leader, has often accused the state's progressive lawmakers of heavy-handed government intrusion, but this year he added his name to a legislative push for healthier school meals.

His party followed suit, with all but one Republican voting to send a bill to Democratic Gov. Gavin Newsom that would put into law a first-in-the nation legal definition of ultraprocessed foods, followed by a public school ban on those deemed most concerning. And while it was California Democrats who led the passage of the nation's first state-level bans on certain artificial food dyes and additives, now conservative state lawmakers across the country have embraced new scrutiny of Americans' food as the Trump administration makes a push to "Make America Healthy Again."

"We see with our kids that they don't have access to necessarily the best food in their schools," said Gallagher, a father of five who as the GOP leader co-authored the recent bill with Democratic Assembly member Jesse Gabriel. "And we see it all around us, not just in California but throughout our country, that our kids are suffering from an epidemic of obesity."

The speed at which improving the healthfulness of America's food has become a bipartisan concern has come as a surprise to some health policy experts, given Republicans' ardent criticism of such efforts in the past.

"It boggles the mind," said Marion Nestle, a professor emerita at New York University who has studied food policy and nutrition for decades. "When Michelle Obama tried to make American kids healthy again, she was vilified by the right and accused of trying to exceed the government's role, creating a nanny state, and all kinds of other things. And now the Republicans are doing it."

While there is no standardized definition, ultraprocessed food generally refers to food that is industrially manufactured and contains ingredients not typically available in a home kitchen. These foods are often low in nutritional value and have high amounts of salt, sugar, and unhealthy fats. Data from the Centers for Disease Control and Prevention indicates that more than half of Americans' calories come from ultraprocessed foods.

Scientific studies have tied ultraprocessed foods to poor health, including increased risk for heart attack, obesity, Type 2 diabetes, and mental health problems. But some of the nation's most influential food industry groups warn that California's bill, if signed into law, could result in foods such as veggie burgers, canned tomatoes, and shredded cheese being labeled as ultraprocessed if they contain additives such as egg whites, citric acid, or corn starch.

"People view ultraprocessed foods as automatically bad," said Dennis Albiani, a lobbyist for several of the industry groups. "Healthy and natural foods could be categorized as ultraprocessed food, and just that categorization would send confusion to consumers that they should avoid these healthy foods."

At least 30 states — some of them deeply conservative — have passed or are considering restrictions on chemicals in food or food packaging, according to the Environmental Working Group, which co-sponsored the California bill. In March, Republican Gov. Patrick Morrisey of West Virginia thanked the Trump administration for "helping us launch this movement" when he signed legislation to outlaw several artificial dyes and additives from food sold in the state. And in August, U.S. Health and Human Services Secretary Robert F. Kennedy Jr. joined Republican Gov. Greg Abbott of Texas when he signed legislation to require warning labels on foods containing certain additives or dyes.

Meanwhile, a dozen states, including Florida, Idaho, and Oklahoma, have applied for and received waivers from the U.S. Agriculture Department to prevent food stamp recipients from purchasing soda and, in some cases, candy.

Kennedy, who is leading the MAHA movement, has asked the industry to phase out petroleum-based synthetic food dyes, is exploring closing a regulatory loophole that allows chemicals to enter the food supply without Food and Drug Administration approval, and is seeking a federal definition for ultraprocessed food, which he says is to blame for an epidemic of chronic disease.

Department of Health and Human Services press secretary Emily Hilliard declined to comment on the California bill but said in an email that Kennedy "encourages state leaders to advance policies that prioritize children's health, support informed decision-making by families, and promote access to healthier choices." Some health experts have questioned whether the Trump administration is serious about cracking down on the food industry, especially after the latest MAHA report, released this month, appeared to back away from direct restrictions on pesticides and ultraprocessed foods.

California has a mixed record on attempts to limit what consumers eat and drink. The Democratic-controlled legislature has approved bans of additives and synthetic food dyes in recent years. But in the face of beverage industry opposition it has been unable to outlaw jumbo-size sugary drinks or tax sodas and other sugary beverages that health providers warn can increase the risk of weight gain, Type 2 diabetes, heart disease, and cavities. At the time, Gallagher called the proposed soda ban "the kind of government intrusion that people can't stand," but he has since said that the evidence has convinced him that additives should be taken out of children's food.

Newsom has 30 days from Sept. 12 to sign or veto the ultraprocessed-food measure. Bill supporters hope the state regulations will have a ripple effect across the nation's food industry, prompting manufacturers to reformulate their products. California public schools serve almost a billion meals a year.

The California bill defines ultraprocessed foods as those high in saturated fat, salt, or added sugar (including non-sugar sweeteners), and containing at least one industrial ingredient from a list that includes thickeners, gases, emulsifiers, and artificial colors and flavors. Bill supporters say they have accounted for industry concerns, and the definition excludes "minimally processed" foods such as diced or canned vegetables, pasteurized milk, alcoholic beverages, infant formula, and medical food formulated to manage disease.

Not all ultraprocessed foods that meet the definition would be banned. Instead, the bill instructs the California Department of Public Health to identify a subsection of ultraprocessed foods "of concern" to be phased out. Factors for the department to consider include whether other states or countries have banned the food, and scientific evidence that the food causes harm or is engineered to be "hyperpalatable," which makes the food hard to resist.

The health department would have to adopt regulations defining those foods no later than June 1, 2028, and public K-12 schools would begin to phase out certain ultraprocessed foods by July 1, 2029. It is unclear how much the measure would cost schools, because it is not known what foods would be eliminated, according to an analysis of the bill.

For Jack Bobo, executive director of the UCLA Rothman Family Institute for Food Studies, the California bill's goal to make kids' meals healthier is a good one but creates unnecessary bureaucracy. Inevitably, the ultraprocessed foods that regulators decide are "particularly harmful" will be high in salt, sugar, and fat, which existing dietary guidelines have already established as unhealthy.

"People are worried about preservatives, they're worried about food additives, when they should just be focusing on fat, salt, and sugar first," Bobo said. "It distracts us from the core attributes that are actually causing the problem, or at least are causing most of the problem. We have too much fat and too much sugar in our kids' meals, just like we do in adult meals."

Bobby Mukkamala, president of the American Medical Association, declined to comment on the bill but said his

organization supports more government regulation of ultraprocessed foods. But the first steps, he added, should be increasing public awareness about the dangers of these foods and educating people about healthier options.

Mukkamala criticized federal funding cuts to the National Institutes of Health that he said make it difficult for scientists to research which ultraprocessed foods pose the most risk. While much ultraprocessed food has little nutritional value, there are some processing methods — such as enriching cereal with folic acid — that could be considered beneficial, he said. And new products are emerging all the time.

"There's a lot of research that helps us figure out what's good and what's bad," he said. The federal government "is saying, 'Let's make us healthier by regulating this stuff, but let's not do enough research to tell us what to do.' It's like one step forward and one step backwards."

This article was produced by KFF Health News, which publishes California Healthline, an editorially independent service of the California Health Care Foundation.

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